

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased: _____

-----X
YALIZA ROSA,

Plaintiff designates BRONX
County as the place of trial

Plaintiff,

The basis of the venue is where
the tort arose and where
plaintiff resides

-against-

THE CITY OF NEW YORK, JOSHUA HEALY P.O. OF
THE 46 PCT., SHIELD #24570, TAX ID #954923,
EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID
#898059, AND OTHER NEW YORK CITY POLICE
OFFICERS UNDER ARREST #B17663134 WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON DECEMBER 14, 2017
AND NO OTHER,

SUMMONS

Plaintiff resides at

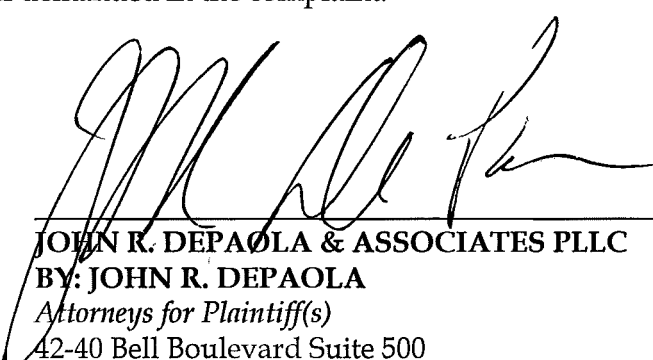
YALIZA ROSA
2105 Ryer Avenue
Bronx, New York 10457

Defendants.
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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York) and, in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
August 29, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**JOSHUA HEALY P.O. OF THE 46 PCT.
SHIELD #24570, TAX ID #954923**
2120 Ryer Avenue
Bronx, New York 10457

**EMILIO MELENDEZ CAPT. OF THE 46 PCT.
TAX ID #898059**
2120 Ryer Avenue
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
YALIZA ROSA,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JOSHUA HEALY P.O. OF
THE 46 PCT., SHIELD #24570, TAX ID #954923,
EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID
#898059, AND OTHER NEW YORK CITY POLICE
OFFICERS UNDER ARREST #B17663134 WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON DECEMBER 14, 2017
AND NO OTHER,

Defendants.

-----X

YALIZA ROSA, by her attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **YALIZA ROSA** was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 26th day of January, 2018 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant **CITY**

OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923, EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17663134 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "6" with full force and effect as though set forth at length herein.

8. On or about December 14, 2017, at approximately 8:00 P.M., in the vicinity of the inside of 355 East 187th Street, Apt. 2J, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of Bronx and there charged her with the crimes on Docket No. 2017BX047745. The Plaintiff was thereafter held in custody over the course of approximately five (5) days until she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement. In this instant case, Plaintiff was just visiting her boyfriend's apartment located at 355 East 187th Street, Apt. 2J in the Bronx. The Plaintiff had been in the apartment for approximately two (2) hours before she heard banging on the door. Plaintiff heard the police yelling for them to open the door. When she cracked the door open, police pushed their way in pushing her with her back to the wall. **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059** grabbed her and turned her around. There was a rail on the wall that stuck out several inches. **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059** pushed her stomach against the rail causing her pain in her stomach. Plaintiff told **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059** that he was hurting her stomach and that she was two months pregnant. Shortly after being pushed against the wall, Plaintiff had vaginal

bleeding. NYPD Officers searched the entire apartment. A gun was found outside the premises on the fire escape. At no time was the Plaintiff in actual, constructive or statutory possession of the firearm and even though her boyfriend took full responsibility for possession of the gun, Plaintiff was still arrested and taken to a police station and then to Central booking. Plaintiff asked for medical attention and a nurse examined her but only gave her water and some pads for the vaginal bleeding. Plaintiff was not able to make bail so she was sent to Rikers Island. Once at Rikers Island she was seen by a doctor who examined her and told her there was nothing wrong. Plaintiff was also told she would be examined on a daily basis but Plaintiff wasn't treated at all. Plaintiff was taken to a dorm and the next morning she miscarried while in the shower. When Plaintiff notified the officers, none of the officers would call for an emergency. Later, Plaintiff was allowed to seek medical attention as she was still bleeding and experiencing substantial pain. Eventually, she was taken to Elmhurst hospital where she spent five (5) hours being treated and was then released and then taken back to jail. Please note the Plaintiff resided at and resides at and has resided her entire life at 2105 Ryer Avenue, Apt. 5E, Bronx, New York with her mother and step father. Please further note there was no legal warrant to enter the premises, consent of any of the occupants or an exigent circumstance where would justify a warrantless entry.

AS AND FOR A SECOND CAUSE OF ACTION

9. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in

Paragraphs "1" through "8" with full force and effect as though set forth at length herein.

10. On or about December 14, 2017, at approximately 8:00 P.M., in the vicinity of the inside of 355 East 187th Street, Apt. 2J, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **YALIZA ROSA** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

11. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "10" with full force and effect as though set forth at length herein.
12. On or about December 14, 2017, at approximately 8:00 P.M., in the vicinity of the inside of 355 East 187th Street, Apt. 2J, County of Bronx, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed, searched and seized the Plaintiff **YALIZA ROSA**, in an excessive manner about her person, causing her physical pain and/or mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff in the manner they did, nor did the Plaintiff consent to this illegal touching nor was it privileged

by law. Plaintiff at Rikers Island was subjected to multiple strip-searches with cavity inspections.

AS AND FOR A FOURTH CAUSE OF ACTION

13. On or about December 14, 2017, at approximately 8:00 P.M., in the vicinity of the inside of 355 East 187th Street, Apt. 2J, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested and imprisoned the Plaintiff, restrained her and her liberty and then took her into custody to a police station and/or correctional facility in the County of Bronx and there charged her with the crimes on Docket No. 2017BX047745. The Plaintiff was thereafter held in custody over the course of approximately five (5) days before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement. In this instant case, Plaintiff was just visiting her boyfriend's apartment located at 355 East 187th Street, Apt. 2J in the Bronx. The Plaintiff had been in the apartment for approximately two (2) hours before she heard banging on the door. Plaintiff heard the police yelling for them to open the door. When she cracked the door open, police pushed their way in pushing her with her back to the wall without her consent. **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059** grabbed her and turned her around. There was a rail on the wall that stuck out several inches. **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID**

#898059 pushed her stomach against the rail causing her pain in her stomach. Plaintiff told EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059 that he was hurting her stomach and that she was two months pregnant. Shortly after being pushed against the wall, Plaintiff had vaginal bleeding. NYPD Officers searched the entire apartment. No gun was found in the premises rather the firearm was found on an outside fire escape not inside of the premises. Again, the police had no warrant, exigent circumstance or consent of any occupant of the premises, to enter, search it or seize its occupants, Plaintiff was still taken to a police station and then to Central booking. Plaintiff asked for medical attention and a nurse examined her but only gave her water and some pads for the vaginal bleeding. Plaintiff was not able to make bail so she was sent to Rikers Island. Once at Rikers Island she was seen by a doctor who examined her and told her there was nothing wrong. Plaintiff was also told she would be examined on a daily basis but Plaintiff wasn't treated at all. Plaintiff was taken to a dorm and the next morning she miscarried while in the shower. When Plaintiff notified the officers, none of the officers would call for an emergency. Later, Plaintiff was allowed to see medical attention as she was still bleeding and experiencing a lot of pain. Eventually, she was taken to Elmhurst hospital where she spent five (5) hours there and treated and release and then taken back to jail.

AS AND FOR A FOURTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about December 14, 2017 and from that time until the dismissal of charges by a Grand Jury on or about December 21, 2017, which was a favorable termination for the accused, Defendants **THE CITY OF NEW YORK, JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923, EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17663134 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, deliberately and maliciously prosecuted Plaintiff, **YALIZA ROSA**, an innocent woman without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

17. The commencement of these criminal proceedings under Docket No. 2017BX047745 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend her liberty against these unjust charges. Please note at no time was the Plaintiff in actual, constructive or statutory possession of any contraband. The firearm was found outside the apartment on a fire escape. The Plaintiff nor any occupant of the apartment gave consent to the police to enter, search the apartment or seize anyone in the apartment. At no time, did the police possess a search warrant, an exigent reason or consent of any of the individuals inside the apartment to enter, search the apartment or seize anyone in the apartment. Further, while the Plaintiff was an inmate at Rikers Island she was subjected to multiple strip-searches with cavity inspections.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

19. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.

20. Defendants **JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923, EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17663134 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff **YALIZA ROSA** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
24. On or about December 14, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **YALIZA ROSA**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, was maliciously prosecuted and had multiple batteries committed against her, without the Defendants possessing probable cause to do so. In

this instant case, Plaintiff was just visiting her boyfriend's apartment located at 355 East 187th Street, Apt. 2J in the Bronx. The Plaintiff had been in the apartment for approximately two (2) hours before she heard banging on the door. Plaintiff heard the police yelling for them to open the door. When she cracked the door open, police pushed their way in pushing her with her back to the wall. She did not consent for the police to enter the apartment nor did they have a search warrant or an exigent circumstance to do so. **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059** grabbed her and turned her around. There was a rail on the wall that stuck out several inches, **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059** pushed her stomach against the rail causing her pain in her stomach and physical injury to wit vaginal bleeding among other charges. Plaintiff told **EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059** that he was hurting her stomach and that she was two months pregnant. Shortly after being pushed against the wall, Plaintiff had vaginal bleeding due to her interaction with the captain who used excessive force against her. NYPD Officers searched the entire apartment, a gun was found outside the premises on a fire escape and even though her boyfriend took full responsibility for the gun, Plaintiff was arrested and taken to a police station and then to Central booking. Plaintiff asked for medical attention and a nurse examined her but only gave her water and some pads for the vaginal bleeding. Plaintiff was not able to make bail so she was sent to Rikers Island. Once at Rikers Island she was seen by a doctor who examined her and told her there was nothing

wrong. Plaintiff was also told she would be examined on a daily basis but Plaintiff wasn't treated at all. Plaintiff was taken to a dorm and the next morning she miscarried while in the shower. When Plaintiff notified the officers, none of the officers would call for an emergency or call for transport to a medical facility. Later, Plaintiff was allowed to seek medical attention as she was still bleeding and experiencing substantial pain. Eventually, she was taken to Elmhurst hospital where she spent five (5) hours being treated and then release. It was documented at Elmhurst Hospital she sustained a miscarriage and she was then taken back to jail. JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923 was the arresting officer on the instant case. JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923, EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059 along with JOHN/JANE DOE I-IV falsely arrested Plaintiff and are believed to be the officers who entered said premises. Based on the false statements made by JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923, EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059 along with JOHN/JANE DOE I-IV Plaintiff was maliciously prosecuted without the defendant's possessing probable cause. These officers provided all the information that led to the Plaintiff to be prosecuted and arrested. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red. Plaintiff was subjected to multiple strip-searches with cavity inspections while she was on Rikers Island.

25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to her person;
 - b. Freedom from battery to her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of her liberty.
 - i. Freedom from failure to provide prompt medical treatment to an inmate/prisoner in need of medical assistance.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "27" with full force and effect as though set forth at length herein.

29. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause nor should police enter a residence unless they have a search warrant, consent of an occupant or possess an exigent circumstance to enter.
30. **THE CITY OF NEW YORK** was negligent or exercised deliberate indifference by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
31. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.

2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
 4. Police who do not possess a valid search warrant, consent of an occupant of an apartment or an exigent circumstance cannot enter a residence.
31. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to her person and denied her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "31" as it set forth at length herein.
33. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition and/or poor training of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training,

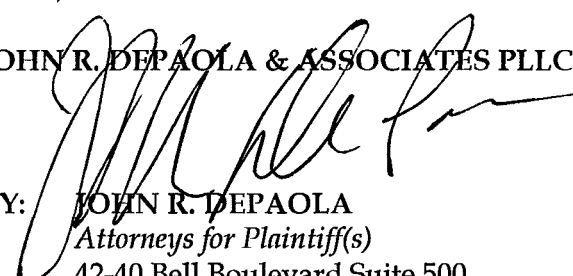
these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
August 29, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  JOHN R. DEPAOLA
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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YALIZA ROSA,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923, EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17663134 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON DECEMBER 14, 2017 AND NO OTHER,

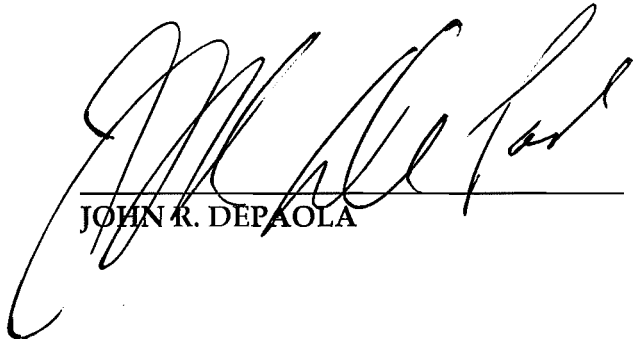
Defendants.

-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
August 29, 2018



JOHN R. DEPAOLA

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

YALIZA ROSA,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOSHUA HEALY P.O. OF THE 46 PCT., SHIELD #24570, TAX ID #954923, EMILIO MELENDEZ CAPT. OF THE 46 PCT., TAX ID #898059, AND OTHER NEW YORK CITY POLICE OFFICERS UNDER ARREST #B17663134 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON DECEMBER 14, 2017 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiffs
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for